

Court No. - 3

Case :- WRIT - C No. - 24090 of 2011

Petitioner :- Rakesh Kumar

Respondent :- State Of U.P. Thru The Ministry Of Energy And Others

Petitioner Counsel :- Hitesh Pachori

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Amitava Lala, J.

Hon'ble Ashok Srivastava, J.

The petitioner's contention is that he wants to pay the amount as claimed by the respondents within the time to be specified by the Court and subject to deposit the same the connection of the electricity may be restored.

Sri Ajay Kumar Singh, learned counsel appearing for the respondent – Corporation has contended that the respondent-Corporation is ready to consider the cause of the petitioner.

Clause 6.5 of the U.P. Electricity Supply Code, 2005 makes such provision subject to deposit of entire amount or on the basis of electricity charges calculated on the basis of average electricity bills of the preceding six months, whichever is less and consider the complaint, if any by the competent authority presumably the reconnection thereof on the basis after drawing an inference in respect thereto.

We are of the view since the petitioner is inclined to deposit the entire amount, the same will be deposited within a period of two months from the date of obtaining a certified copy of this order and subject to deposit the same he will make an application for the purpose of restoring electricity connection, upon which the authority concerned after considering all pros and cons will be able to restore the same without delaying the cause but not beyond a period of 72 hours from making such application.

The writ petition is accordingly disposed of, however, without imposing any cost.

However, this order is irrespective of the case of theft, if any, which will be dealt with independently. If such cause is established the authority concerned is entitled to take steps in accordance with law.

Order Date :- 26.4.2011

S.B.

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Civil Misc. Modification Application No. 137821 of 2011

We have gone through the record.

This application is made for the purpose of modification of the order dated 26.04.2011. Such type of application cannot be allowed. Once liberty has been given to the petitioner to make payment, no further time can be granted.

Therefore, the application is dismissed, however, without imposing any cost.

Order Date :- 5.5.2011

Jaideep/-